

Sean McElwee is a writer and researcher based in New York City and a co-founder of Data for Progress. (25 October 2018, "The Fight For The Supreme Court Is Just Beginning" https://www.huffingtonpost.com/entry/opinion-supreme-court-progressives_us_5bd09cd4e4b0a8f17ef34d1c)//sLavelle

Brett Kavanaugh is an associate justice of the Supreme Court, his confirmation solidifying a five-vote majority for the court's extreme conservatives. **Progressives are bracing themselves for the effects of a fully empowered right-wing court, and so they should.** Yet most Americans are unaware of how deeply the court has already damaged American society, even without a conservative majority. Over the past two decades, the extremist court has resegregated schools, made it easier for abusive cops to avoid punishment, weakened protections for survivors, poisoned children, empowered racist vote suppressors and even thrown elections — including the presidency — to the Republican Party. Now, **the limited restraints offered by Justice Anthony Kennedy have disappeared, and the threat is even greater. There is, however, one difference between the past two decades and now: Progressives are finally paying attention. The Supreme Court has rarely been a force for progress.** In its most famous and popular decisions — such as Brown, Griswold and Obergefell — the court largely hedged its bets and **acted after social movements** had already paved the way. It has rarely acted, much less acted effectively, without support from the legislative and executive branches. Of course, the court can and sometimes does promote progressive change, but it's a narrower avenue for change than many people assume. And **pursuing that change in court often means investing less in other tactics because lawsuits are costly and resources are limited.** Nonetheless, progressives have waged their battles primarily before the court — clinging to what Gerald Rosenberg called The Hollow Hope — instead of taking issues directly to voters. Measures like Amendment 4 in Florida to restore voting rights, automatic voter registration in Alaska and right-to-work repeal in Missouri suggest that **taking our issues directly to voters is effective. Across the country, direct democracy and organizing have reaped rewards, while the courts** — and in particular the Supreme Court — **have remained a "hollow hope." The costs of over-investing in this uphill legal strategy have been immense** but largely unseen. **Money that pays high-priced lawyers can't fund canvassers and signature collectors. And talented progressives who go to law school generally don't become organizers; many, burdened by student debt, get stuck on the corporate track, where they may well perpetuate injustice by defending corporate interests.** Meanwhile, the right, knowing that its agenda is deeply unpopular, has turned to the courts to override the popular will, aggressively filing lawsuits that will be ruled on by radical right-wing judges. And while the right has recruited and empowered armies of political operatives to wage war on behalf of Trumpist judges and judicial nominees, the left has relied largely on members of the academy. When soldiers battle scholars, the soldiers win. **Because the right has weaponized the courts, progressives must do so as well.** That means more organizations like Demand Justice, with political operatives doing the dirty work, and more local organizers ready and able to pressure key senators during close confirmation votes and in response to bad court decisions. This effort must be built from the ground up because few cases reach the Supreme Court.